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[TENTATIVE] ORDER GRANTING DEFENDANT AKOPYAN'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE IN PART AND DENYING IN PART

I. INTRODUCTION

This is an action for breach of contract and related claims arising out of the alleged sale of a medical practice. On March 13, 2024, Plaintiffs Benjamin Charchian and Arthur Charchian, as Trustees of the Estate of Dr. David M. Charchian and/or Trustees of the David Charchian and Nazeli Charchian 1997 Revocable Living Trust ("Plaintiffs"), filed the initial complaint. On February 13, 2025, Plaintiffs filed the operative First Amended Complaint ("FAC"), alleging causes of action for (1) breach of contract, (2) account stated, (3) services rendered, and (4) fraud.

On July 28, 2026, Defendant Asmik Akopyan ("Akopyan") filed the instant motion to compel further responses from Plaintiffs Arthur Charchian and Benjamin Charchian to Special Interrogatories (SPROGS), Set One. On August 14, 2026, Plaintiffs filed an opposition. Akopyan filed a reply on August 10, 2026.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (*Id.*) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general

III. ANALYSIS

Akopyan moves pursuant to Code of Civil Procedure section 2030.300 for an order compelling Plaintiffs Arthur Charchian and Benjamin Charchian, to serve further verified, complete, and code-compliant responses to SPROGS, Set One, with all objections withdrawn or overruled. The interrogatories were served on April 7, 2026. Akopyan seeks further responses to the following:

Arthur Charchian: SPROGs Nos. 1-15.

Benjamin Charchian: SPROGs Nos. 1-22.

Akopyan also requests monetary sanctions against Plaintiffs and their counsel, jointly and severally, in the amount of \$19,747.50 pursuant to Code of Civil Procedure sections 2030.300, subdivision (d), and 2023.030, subdivision (a). (Notice, p. 2.)

Adequacy of plaintiff's responses

Akopyan argues Plaintiffs' responses are facially deficient because each of the 37 responses consists solely of the same boilerplate objections and provides no substantive answer. Akopyan further notes that every response objects to the term "subcontractor" as vague, although that term does not appear in any of the interrogatories. (Motion, p. 13.)

The Court agrees. Under Code of Civil Procedure section 2030.220, responses to interrogatories must be as complete and straightforward as the information reasonably available to the responding party permits. Here, Plaintiffs provided no substantive responses and instead asserted identical, generalized objections to each interrogatory, including an objection to a term that does not appear in the discovery. Plaintiffs do not explain this discrepancy in opposition.

Compound questions, subparts and preface

Plaintiffs argue that the SPROGS contain impermissible subparts and compound, conjunctive, or disjunctive questions in violation of Code of Civil Procedure section 2030.060, subdivision (f). Plaintiffs further argue that, if properly separated, the interrogatories would exceed the statutory limit of 35 and require a declaration of necessity. Plaintiffs also argue the use of definitions preceding the interrogatories violates section 2030.060, subdivision (d). (Opposition, pp. 5-9.)

The Court is not persuaded. Akopyan propounded 15 SPROGs to Arthur and 22 to Benjamin, neither of which exceeds the statutory limit. Although some interrogatories contain multiple inquiries, those inquiries generally concern a common subject. For example, Benjamin's Interrogatory No. 1 asks when the APA was first drafted and who participated in its drafting; No. 2 asks what changes were made between the Draft and Final APA, the reasons for those changes, and who directed or approved them; and No. 3 asks the capacity in which Benjamin executed the Final APA and the authority permitting him to do so. These related inquiries do not establish that Plaintiffs were entitled to refuse to provide any substantive response. (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1289–1291.)

Moreover, Plaintiffs did not assert their objection concerning the use of a preface or definitions in their May 1, 2026, responses, but raised for the first time during meet and confer. Thus, the objection was not timely asserted.

Thus, objections **OVERRULED** based on compound questions and subparts.

Relevance, overbreadth, undue burden, oppression and harassment

Plaintiffs argue the interrogatories concerning Charchian Medical's revenues, financial performance, and patient census are irrelevant, invasive, and burdensome. Specifically, Plaintiffs challenge SPROGs Nos. 4, 8, 9, and 15 directed to Benjamin and No. 5 directed to Arthur. (Opposition, pp. 10-12.) Plaintiffs contend the APA contains no representations regarding Charchian Medical's financial performance or patient retention and provides that Defendants conducted their own due diligence. Plaintiffs further argue Defendants possess their own records from which they can evaluate the value received under the APA.

The Court is not persuaded. Defendants assert a failure of consideration defense, and information concerning Charchian Medical's revenues, patient census, and financial performance is relevant to the value of the business Defendants purchased. (Motion, pp. 9-10.) Although Plaintiffs argue the APA contains no representations regarding financial performance and provides that Defendants conducted their own due diligence, those provisions concern the merits of Defendants' defense and do not establish that the information is outside the scope of discovery under Code of Civil Procedure section 2017.010.

Plaintiffs also argue Defendants already possess records from which they can evaluate the value received under the APA. However, Defendants' possession of their own records does not establish that they possess the same information concerning Charchian Medical's pre-sale revenues, patient census, and financial performance sought from Plaintiffs. Plaintiffs also fail to show that responding to these interrogatories would impose an undue burden or improperly invade any protected interest.

Thus, the Court **OVERRULES** Plaintiffs' objections based on relevance, overbreadth, undue burden, oppression, harassment

Attorney- client privilege and work product

Plaintiffs argue certain interrogatories implicate the attorney-client privilege and work product doctrine because Benjamin, an attorney, provided legal advice to Arthur concerning the preparation, negotiation, and terms of the APA. Plaintiffs specifically identify Arthur's SPROGs Nos. 1, 2, 3, 4, 7, 9, 10, 13, 14, and 15, and Benjamin's SPROGs Nos. 1, 2, 3, 4, 10, 12, 13, 15, and 16. (Opposition, p. 9.)

Plaintiffs' blanket privilege objections do not justify withholding all substantive information responsive to these interrogatories. Indeed, Plaintiffs state that their objections were qualified by the phrase "to the extent" an interrogatory seeks privileged information and clarify that this "does not mean the responding party is withholding information on that basis." (Opposition, p. 9.) Thus, to the extent responsive information is nonprivileged, Plaintiffs must provide a substantive response. To the extent a particular interrogatory actually seeks protected attorney-client communications or attorney work product, Plaintiffs may specifically assert the applicable privilege or protection.

Thus, the Court **GRANTS** the motion as to these interrogatories, subject to any properly asserted attorney-client privilege or work product protection.

Physician- patient privilege

Plaintiffs argue Benjamin's SPROG No. 6 improperly seeks information concerning Dr. Charchian's medical condition and is protected by the physician-patient privilege. (Opposition, p. 12.) The interrogatory asks when Dr. Charchian was diagnosed with the illness or condition resulting in his death, the nature of that condition, and its effect on his ability to practice medicine.

The Court agrees. Although Plaintiffs did not specifically assert the physician-patient privilege in their original response, the interrogatory, as worded, directly seeks information concerning Dr. Charchian's medical condition. Akopyan has not established that Dr. Charchian's medical condition was placed at issue or that an exception to the privilege applies.

Thus, the Court DENIES the motion to compel further response to Benjamin's SPROG No. 6.

Sanctions

Akopyan requests \$19,747.50 in monetary sanctions against Plaintiffs and their counsel, jointly and severally, consisting of 26.25 hours of attorney time at \$750 per hour, plus the \$60 filing fee. (Arutyunyan Decl., ¶ 27.)

Plaintiffs request \$6,975 in sanctions, consisting of nine hours of attorney time at \$775 per hour. (Shenian Decl., ¶ 6.)

Code of Civil Procedure section 2030.300, subdivision (d), requires the Court to impose monetary sanctions against the party who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds substantial justification or other circumstances make sanctions unjust.

Here, sanctions against Plaintiffs are warranted because Plaintiffs provided no substantive responses to the interrogatories and instead asserted substantially identical boilerplate objections. However, the amount requested by Akopyan is excessive.

The Court therefore reduces Akopyan's requested sanctions to \$2,310, representing three hours of attorney time at \$750 per hour, plus the \$60 filing fee. Plaintiffs and their counsel are ordered, jointly and severally, to pay sanctions of \$2,310 within 30 days.

The Court DENIES Plaintiffs' request for sanctions because Akopyan substantially prevailed on the motion.

IV. ORDER

The Court GRANTS in part and DENIES in part the motion to compel further responses to SPROGS, Set One. The motion is GRANTED as to Arthur Charchian's SPROGS Nos. 1-15, and Benjamin Charchian's SPROGS as to Nos. 1-5, 7-22. To the extent a particular interrogatory seeks information protected by the attorney-client privilege or work product doctrine, Plaintiffs may specifically assert the applicable privilege or protection.

The motion is DENIED as to Benjamin Charchian's SPROG No.6.

The Court further GRANTS Akopyan's request for monetary sanctions in the reduced amount of \$2,310, payable jointly and severally by Plaintiffs and their counsel within 30 days. The Court DENIES Plaintiffs' request for monetary sanctions.

The Court reminds the parties that civil discovery is intended to be a self-executing system with minimal judicial intervention. (See Volkswagenwerk Aktiengesellschaft v. Superior Court (1981) 122 Cal.App.3d 326, 331; Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1291–1292.) The parties are encouraged to act in good faith and make reasonable efforts to resolve any remaining discovery disputes without further Court intervention.

Akopyan is to give notice.

Dated: August 21, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT